# Ross A. Brater, Ph.D.

Senior Economist, Freshwater Prestige Economics
Ross.Brater@FreshwaterPrestige.com

## PROFILE

Dr. Brater is an economist with Freshwater Prestige Economics, where he provides economic analysis for antitrust litigation and investigations. He brings over a decade of enforcement experience as an economist in the Antitrust Division of the U.S. Department of Justice, where he worked on civil merger and conduct investigations, criminal cartel and bid-rigging matters, and interlocking-directorate matters. He received three Assistant Attorney General Awards, including for the Aetna/Humana and T-Mobile/Sprint merger investigations. He holds a Ph.D. in Economics from The Ohio State University, specializing in industrial organization and microeconomic theory, and he has taught economics at New York University – Washington, DC and at Ohio State.

## EDUCATION

Ph.D., Economics, **The Ohio State University**, 2014
M.A., Economics, **The Ohio State University**, 2009
B.A., Mathematics and Economics, *magna cum laude*, **Ohio Wesleyan University**, 2007

## PROFESSIONAL EXPERIENCE

**Freshwater Prestige Economics** 2026 – present
*Senior Economist*

- Economic analysis for antitrust litigation and investigations, including market definition, merger and conduct analysis, and assessment of alleged horizontal agreements.
- Empirical and theoretical modeling in support of expert reports, client advice, and presentations.

**U.S. Department of Justice, Antitrust Division**, Washington, DC Jul. 2014 – Sep. 2026
*Economist*

- Conducted economic analysis for civil merger investigations, criminal antitrust matters, and interlocking-directorate matters (see Selected Matters).
- Gave educational presentations to Association of Southeast Asian Nations (ASEAN) competition authorities and to Mexico's Federal Economic Competition Commission (COFECE).
- Taught part of the Antitrust Division's five-section merger training for new economists and attorneys
- Recipient of three Assistant Attorney General Awards: Tupy/Teksid (2021), T-Mobile/Sprint (2019), and Aetna/Humana (2017).
- Served as mentor for multiple new economists.

**New York University – Washington, DC** Fall 2016 – Winter 2023
*Part-time Lecturer*

- Instructor, Principles of Microeconomics and Principles of Macroeconomics.

**The Ohio State University**, Columbus, OH Sep. 2009 – May 2014
*Graduate Teaching Associate, Department of Economics*

- Instructor: Intermediate Microeconomics; Economics of Sports; Government and Business; Current Economic Issues in the United States; Principles of Macroeconomics.
- Teaching Assistant: Principles of Microeconomics; Economic Analysis of Japanese Firms and Markets.

**Earlier positions**

- Registered Representative, Fidelity Investments, Oct. 2007 – Aug. 2008
- Student Assistant and Head Tutor, Quantitative Skills Center, Sagan Academic Resource Center, Ohio Wesleyan University, Aug. 2006 – May 2007

## SELECTED MATTERS

### *Civil merger and conduct*

- Tupy/Teksid (Assistant Attorney General Award, 2021)
- T-Mobile/Sprint (Assistant Attorney General Award, 2019)
- Aetna/Humana (Assistant Attorney General Award, 2017)
- Harvard Pilgrim/Tufts (health insurance)
- Eutelsat/OneWeb (geosynchronous earth orbit satellites)
- CenturyLink/Level 3 (fiber optic cable networks)
- Experian/CSID (identity theft protection)
- Stamps.com/Endicia (electronic postage)
- Netscout/Danaher (network performance monitoring)
- Vista/Remington (ammunition)
- Continental/Veyance (industrial rubber products)
- Cardtronics/Welch (ATM deployment)
- Big Tex/ATW (trailers)
- LiquiBox/DS Smith (bag-in-box packaging)
- Apple (conduct)

### *Interlocking directorates (Clayton Act Section 8)*

- UnitedHealth Group

### *Criminal conduct*

- Signed Expert Report in *U.S. v. Craig Nichols* (S.D. Ind.) — Muncie, Indiana public-corruption and demolition bid-rigging investigation
- Industries including container ocean shipping, roll-on/roll-off ocean shipping, wine and spirits distribution, orange groves, and pavement crack sealing

## RESEARCH

### *Working papers*

"Partnerships and Loyalty Discounts in a Differentiated Products Market"

"Consumer Rewards Programs in a Multi-Market Setting"

"Loyalty Rewards Programs in the Face of Entry"

### *Research in progress*

"(Not Quite) Two-Sided Markets: A Dynamic Model of Cross-Group Externalities."

## CONFERENCE PRESENTATIONS

"Consumer Rewards Programs in a Multi-Market Setting," Midwest Economic Theory Conference, Indianapolis, IN, May–June 2014.

"Partnerships and Loyalty Discounts in a Differentiated Products Market," Midwest Economics Association Annual Meeting, Evanston, IL, March 2014.

"Loyalty Rewards Programs in the Face of Entry," Midwest Economic Theory Conference, East Lansing, MI, April 2013.

## PROFESSIONAL SERVICE

Referee, *China Economic Review*.

Member, Board of Directors, Justice Occupational Health Organization, 2017 – 2025.

Senator, The Ohio State University Senate, 2013 – 2014; Co-Chair, Graduate Compensation and Benefits Committee of the University Senate, 2013 – 2014; Member, Council of Graduate Students, 2013 – 2014.

Judge, Denman Undergraduate Research Forum (2013) and Council of Graduate Students' Edward J. Ray Travel Award (2013), The Ohio State University.

## HONORS AND AWARDS

**U.S. Department of Justice:** *Assistant Attorney General Award*: Tupy/Teksid team (2021), T-Mobile/Sprint team (2019), Aetna/Humana team (2017).

**The Ohio State University:** *L. Edwin Smart Graduate Associate Teaching Award in Economics* (2013); *L. Edwin Smart Departmental Citation for Excellence in Teaching* (2012).

**Ohio Wesleyan University:** Outstanding Senior Major in Economics (2007); Outstanding Male Greek Scholar of the Year (2007); Presidential Scholar (2003 – 2007); Florence Leas Prize in Mathematics, Third Prize (2004, 2005); Dean's List every semester enrolled.

**Honor societies:** Omicron Delta Epsilon (economics); Pi Mu Epsilon (mathematics); Omicron Delta Kappa (leadership); Order of Omega (Greek leadership); Phi Eta Sigma (first-year students).